

5. **So assigns in the post.** — Assigns in the *post*, or by operation of law, are also invested with the character of trustees; as if a trustee marry, the wife is at *law* entitled to her dower, and if a female trustee marry, the husband is at *law* entitled to his curtesy, but in *equity* both the *dowress* (*d*) and *tenant by the curtesy* (*e*), are compellable to recognise the right of the *cestui que trust*. So a *creditor* of the trustee extending the trust estate under an *elegit* (*f*), or taking a trust chattel *by writ of execution (*a*), and by the same [*247] rule the creditors' trustee under a bankruptcy (*b*) are made subject to the equity.

6. **Forfeiture.** — And if the trustee commit a *forfeiture*, the lord, as he succeeds to the identical estate of the forfeitor, must take the property with all the engagements and incumbrances attached to it, and is therefore liable to the trust (*c*).

(*d*) *Pawlett v. Attorney-General*, Hard. 469, *per* Lord Hale; *Noel v. Jevon*, Freem. 43; *Hinton v. Hinton*, 2 Ves. 634, *per* Lord Hardwicke.

(*e*) *Bennet v. Davis*, 2 P. W. 319.

(*f*) *Pawlett v. Attorney-General*, Hard. 456, *per* Lord Hale; *Kennedy v. Daly*, 1 Sch. & Lef. 373, *per* Lord Redesdale; *Finch v. Earl of Winchelsea*, 1 P. W. 277; *Burgh v. Burgh*, Rep. t. Finch, 28. In the case of *Whitworth v. Gaugain*, 1 Cr. & Ph. 325, where a person made a deposit of title deeds, and then a judgment was entered up against him, Lord Cottenham expressed a doubt whether the judgment creditor, *if he had no notice*, would be bound by the prior equity. However, such a doctrine was not tenable, for a judgment creditor is not a purchaser for valuable consideration. *Brace v. Duchess of Marlborough*, 2 P. W. 491. He advances money, but not on the security of this estate. He may take the person of his debtor, or his goods and chattels, and if he is put in possession of the lands, it is not as purchaser of them, but by course of law. The cause was afterwards heard, and Lord Cottenham's doubts were displaced by a decision the other way, 3 Hare,

416; 1 Ph. 728. In *Watts v. Porter*, 3 Ell. & Bl. 743, three of the four judges, while approving of *Whitworth v. Gaugain*, refused to apply the principle of it to a case of stock. The remaining judge differed, and held that in personal, as in real estate, the specific incumbrancer, though he gives no notice to the trustee, prevails over the judgment creditor, though he has obtained a charging order. It is conceived that the single judge took the clearer view. Those who determined the other way, seem to have assumed that notice was necessary for the transfer of an equitable interest, which is not true as between assignor and assignee, but only as between two contending assignees. The case of *Watts v. Porter* has since been disapproved by the highest authorities, *Beavan v. Lord Oxford*, 6 De G. M. & G. 507; *Kinderley v. Jervis*, 22 Beav. 34; *Scott v. Hastings*, 4 K. & J. 633.

(*a*) *Foley v. Burnell*, 1 B. C. C. 278, *per* Lord Thurlow.

(*b*) See *suprà*, p. 242, note (*e*).

(*c*) *Burgess v. Wheate*, 1 Eden, 230, *per* Sir T. Clarke; *Ib.* 252, *per* Lord Henley.